

25TRCV01053 25TRCV01053

County: los-angeles

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Department: M

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Case Number: 25TRCV01053 Hearing Date: August 11, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Tuesday, August 11, 2026

Department M Calendar No.

PROCEEDINGS

Homeira

Goldstein, et al. v. Lawrence M. Wolf, et al.

25TRCV01053

1.

Homeira Golstein,

et al.'s Motion to Appoint Appraiser to Determine Fair Market Value

TENTATIVE RULING

Homeira Golstein, et al.'s Motion to

Appoint Appraiser to Determine Fair Market Value is granted.

Background

Plaintiff filed the Complaint on April 2, 2025. Plaintiff

filed the Second Amended Complaint on October 31, 2025. Plaintiff alleges the following facts. This is a partition action as to three co-owned properties: 2516

Carnegie Lane, Redondo Beach, CA 90278 (APN 4157-009-004); 520 Manhattan Avenue, Hermosa Beach, CA 90254 (APN 4188-010-046); and 526 Manhattan Avenue, Hermosa Beach, CA 90254 (APN 4188-010-047).

Motion to Appoint Appraiser and to Determine Value

Code Civ. Proc., § 874.311 states:

“(a) This act shall be known, and may be cited, as the Partition of Real Property Act.

(b) This act applies to real property held in tenancy in common where there is no agreement in a record binding all the cotenants which governs the partition of the property.

(c) This act applies to actions for partition of real property filed on or after January 1, 2023.”

Code Civ. Proc., § 874.312 states:

“For purposes of this chapter, the following definitions apply:

(a) “Determination of value” means a court order determining the fair market value of the property under Section 874.316 or 874.320 or adopting the valuation of the property agreed to by all cotenants.

(b) “Partition by sale” means a court-ordered sale of the entire property, whether by auction, sealed bids, or open-market sale conducted under Section 874.320.

(c) “Partition in kind” means the division of property into physically distinct and separately titled parcels.

(d) “Record” means information that is inscribed on a tangible medium or that is stored in an electronic or other medium and is retrievable in perceivable form.”

Code Civ. Proc., § 874.316 states:

“(a) Except as otherwise provided in subdivisions (b) and (c), the court shall determine the fair market value of the property by ordering an appraisal pursuant to subdivision (d).

(b) If all cotenants have agreed to the value of the property or to another method of valuation, the court shall adopt that value or the value produced by the agreed method of valuation.

(c) If the court determines that the evidentiary value of an appraisal is outweighed by the cost of the appraisal, the court, after an evidentiary hearing, shall determine the fair market value of the property and send notice to the parties of the value.

(d) If the court orders an appraisal, the court shall appoint a disinterested real estate appraiser licensed in the State of California to determine the fair market value of the property assuming sole ownership of the fee simple estate. On completion of the appraisal, the appraiser shall file a sworn or verified appraisal with the court.

(e) If an appraisal is conducted pursuant to subdivision (d), not later than 10 days after the appraisal is filed, the court shall send notice to each party with a known address, stating all of the following:

(1) The appraised fair market value of the property.

(2) That the appraisal is available at the court clerk's office.

(3) That a party may file with the court an objection to the appraisal not later than 30 days after the notice is sent, stating the grounds for the objection.

(f) If an appraisal is filed with the court pursuant to subdivision (d), the court shall conduct a hearing to determine the fair market value of the property not sooner than 30 days after a copy of the notice of the appraisal is sent to each party under subdivision (e), whether or not an objection to the appraisal is filed under paragraph (3) of subdivision (e). In addition to the court-ordered appraisal, the court may consider any other evidence of value offered by a party.

(g) After a hearing under subdivision (f), but before considering the merits of the partition action, the court shall determine the fair market value of the property and send notice to the parties of the value.”

Plaintiff moves for an order “pursuant to Code of Civil Procedure § 874.316, appointing a licensed, disinterested real estate appraiser to determine the fair market value of the real properties located at: (1) 2516 Carnegie Lane, Redondo 16 Beach, CA 90278 (APN: 4157-009-004); (2) 520 Manhattan Ave., Hermosa Beach, CA 90254 17 (APN: 4188-010-046); and (3) 526 Manhattan Ave., Hermosa Beach, CA 90254 (APN: 4188-010 18 04 7) (collectively, the “Properties”), which form the subject matter of this action. (Notice of Motion, p. 2, lines 13-18). The motion is made on the grounds that the provisions of CCP 874.311 et seq. (the Partition of Real Property Act) apply to this case and thus the Court must determine the fair market value by appointing an appraiser.

Defendant filed a conditional non-opposition. Defendant contests the portion of the motion stating that there was no agreement governing the partition of the properties. Defendant cites to the allegations in its own Cross-Complaint arguing that the parties had some type of “understanding.” The Court finds that the filing of this “conditional non-opposition” is unnecessary and distracting. The fact that the Defendant filed a Cross-Complaint appears to show that the parties have not been able to agree on the manner of partition based on a lack of an agreement in a record.

First, of all simple allegations in a pleading do not constitute evidence to establish an agreement in a record. Second, certainly, a vague “understanding” does not appear to qualify as an agreement in a record as defined by Sections 874.311 and 874.312. Third, if indeed an agreement in a record as defined by Sections 874.311 and 874.312 exists, then, arguably, there would be no need for this litigation at all.

Therefore, Plaintiff’s Motion to Appoint Appraiser to Determine Fair Market Value is granted.

Plaintiff is ordered to give notice of this ruling.